

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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DANA BEST,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER KEVIN
DEVINE (Shield 8234), POLICE OFFICER ZAYDA
NATAL (Shield 18468), POLICE OFFICER JOSEPH
VILLA (Shield 22283), POLICE OFFICER JOSE LUI
DELUNA (Shield 13048), POLICE OFFICER WILLIAM
DAVITT (Shield 05060), SERGEANT THOMAS
MALONEY (Shield 5510),

Defendants.

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ECF CASE

**FIRST AMENDED
COMPLAINT**

05 CV 0971 (NRB) MHD)

Jury Trial Demanded

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff seeks relief for the violation of her rights secured by 42 U.S.C. § 1983, the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. The case arises from a May 25, 2004 incident in which members of the New York City Police Department (“NYPD”) subjected plaintiff to unreasonable force, assault and battery, malicious prosecution, and fabricated evidence. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorneys’ fees, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide claims arising under state law. To this end, a notice of claim was duly filed on the City of New York within 90 days of the incident at issue, more than 30 days have elapsed since such filing, and the City has refused to settle plaintiff's claims. Moreover, this action was filed within one year and 90 days of the incident that is the basis of this case.

4. Venue is proper here pursuant to 28 U.S.C. § 1391(b) and (c) because the defendant City of New York is subject to personal jurisdiction in the Southern District of New York.

PARTIES

5. Plaintiff is a resident of the State of New York, Kings County.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. The individuals named in the caption are New York City Police Officers who violated plaintiff's rights as described herein.

8. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

9. The following is a summary.

10. On May 25, 2004, at approximately 10:50 p.m., Police Officers Kevin Devine, Zayda Natal, Joseph Villa, Jose Lui Deluna, William Davitt and Sergeant Thomas Maloney (the "officers") responded to a dispute that had occurred at 3102 Snyder Avenue, Brooklyn, New York.

11. Upon entering 3102 Snyder Avenue, the officers had a verbal dispute with plaintiff concerning whether she was a victim or a wrongdoer.

12. The officers responded to the verbal dispute by subjecting plaintiff to excessive force and to assault and battery. The officers, acting in concert, grabbed plaintiff by her hair, struck plaintiff in the head with a police radio, jumped on plaintiff, twisted plaintiff's limbs, kicked and struck plaintiff, and dragged plaintiff down several steps. The officers then took plaintiff outside, lifted her off the ground, and threw her onto the trunk of a police car. Thereafter, the officers took a hard object and shoved it into plaintiff's anal and genital area. The officers also sprayed plaintiff with pepper spray.

13. To cover up their unlawful use of force, the officers, acting in concert, arrested plaintiff on a bogus charge of resisting arrest. However, plaintiff did not resist arrest at any time.

14. Plaintiff was then taken to Kings County Hospital. At the hospital, plaintiff was treated for her injuries and received stitches to her right eye.

15. After being treated at Kings County Hospital, plaintiff was taken to the 67th precinct for arrest processing.

16. After processing plaintiff's arrest, and while plaintiff was awaiting arraignment in criminal court, Officer Kevin Devine met with a prosecutor employed by the Kings County District Attorney's Office.

17. During this meeting, Officer Devine presented the prosecutor with a false story that plaintiff had resisted arrest.

18. As a result of this fabrication, a criminal charge of resisting arrest was filed against plaintiff under docket number 2004KN033513.

19. In December, 2004, the resisting arrest charge and the other charges filed against plaintiff were dismissed.

20. As a result of the aforesaid police action, plaintiff suffered personal and physical injuries, fear, embarrassment, humiliation, loss of liberty, pain and suffering, damage to reputation, and emotional distress.

**FEDERAL AND STATE LAW CLAIMS
AGAINST DEFENDANTS KEVIN DEVINE,
ZAYDA NATAL, JOSEPH VILLA, JOSE LUI
DELUNA, WILLIAM DAVITT AND
SERGEANT THOMAS MALONEY**

21. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-20 as if fully set forth herein.

22. The conduct of Kevin Devine, Zayda Natal, Joseph Villa, Jose Lui Deluna, William Davitt and Sergeant Thomas Maloney, as described herein, amounted to unreasonable force, assault and battery, malicious prosecution as to the charge of resisting arrest, and fabrication of evidence. Such conduct violated plaintiff's rights under 42 U.S.C. § 1983, the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution, and state law.

**FEDERAL AND STATE LAW CLAIMS
AGAINST THE CITY OF NEW YORK**

23. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-22 as if fully set forth herein.

24. The City of New York directly caused the constitutional violations suffered by plaintiff.

25. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the NYPD and the Civilian Complaint Review Board, and from the NYPD's own observations, that Kevin Devine,

Zayda Natal, Joseph Villa, Jose Lui Deluna, William Davitt and Sergeant Thomas Maloney are unfit, ill-tempered officers who were highly likely to commit the acts alleged on the present case.

26. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly utilized and retained them. Moreover, the City of New York failed to adequately investigate prior complaints against the officers. This conduct by the City created an atmosphere in which the officers felt that they could falsely arrest and physically abuse citizens with impunity.

27. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

28. Moreover, under state law, the City of New York is vicariously liable for the officers' assault and battery and malicious prosecution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: April 26, 2005
Brooklyn, New York

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By:

RICHARD J. CARDINALE (RC-8507)